

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 17, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Betancourt v. Zest US Wholesale, Inc. 2026-01552817 Demurrer to Complaint	Defendant Zest US Wholesale, Inc.'s Demurrer to the Complaint is SUSTAINED with 30 days leave to amend. Plaintiff verified her Complaint and included the standard qualification: "The matters stated in the Verified Complaint for Damages and Demand for Jury Trial are true of my own knowledge, except as to those matters which are stated on information and belief, and as to those matters, I believe them to be true." However, Plaintiff also qualified the allegations in the introductory statement providing: "Plaintiff Breyda Betancourt alleges as follows on knowledge as to herself and her own acts, and on information and belief as to all other matters." Thus, it is uncertain as to which allegations are verified and which allegations Plaintiff asserts on information and belief. Therefore, the Plaintiff's Complaint is uncertain as to which allegations are verified and, thus, Plaintiff would be subject to impeachment should she present contrary evidence later. (See <i>Interstate Specialty Marketing, Inc. v. ICRA Sapphire, Inc.</i> (2013) 217 Cal.App.4 th 708 [the main risk of an incorrect verification is "impeachment, or even perjury"].)
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2	Model Builders, Inc. v. Pham 2024-01382108 Demurrer to Amended Complaint	Defendant Tony Dang’s Demurrer to Plaintiffs Model Builders, Inc. and Nghia Dao’s Third Amended Complaint is SUSTAINED with 20 days leave to amend. Dang’s procedural defects Dang has not submitted proofs of service showing the demurrer, request for judicial notice, or reply were served on Plaintiffs. (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, Rule 3.1300, subd. (c).) The Court considers the demurrer and request for judicial notice as Plaintiffs have filed a timely opposition to the demurrer, including an objection to the request for judicial notice. The Court declines to consider the reply. Dang’s request for judicial notice Dang’s Request for Judicial Notice is GRANTED as to Exhibits 1, 2, 3, 4, 6, 7, 9, and 10 and DENIED as to Exhibits 5 and 8. Plaintiffs’ objections to Dang’s request for judicial notice as to Exhibits 1, 2, and 9 are DENIED as MOOT as the Court is limited to taking judicial notice of only the existence of those documents. Sixth cause of action for fraud A cause of action for fraud contains “the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages.” (<i>Hasso v. Hapke</i> (2014) 227 Cal.App.4th 107, 127.) Plaintiffs allege Dang was an employee of Model Builders, Inc. (Model Builders) on or about 8/16/17. (TAC ¶ 5.) Plaintiffs allege Dang, who was not a licensed contractor, misrepresented his authority within Model Builders to enter into an agreement with Phung Van Tong for remodeling work at Tong’s home. (TAC ¶ 5.) Plaintiffs further allege Dang did not obtain consent or authorization from Nghia Dao (Dao) or Model Builders to use Model Builders’ name when he signed the agreement with Tong. (TAC ¶ 6.) Disputes between Tong and Dang led to a lawsuit brought by Tong, Phung Van Tong v. Model Builders, Inc., et al., case number 30-2018-01036570-CU-BC-CJC. (TAC ¶ 6.) Plaintiffs (defendants in that action) retained Loc Pham as counsel, who did not disclose he was related to Dang. (TAC ¶¶ 23, 24.) Judgement was ultimately entered against Model Builders and Dao in the Tong action. (TAC ¶ 131.)
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	Dang contends the fraud claim fails because the court found in the Tong action that Dao dba Model Builders was the actual party to the agreement with Tong, and not Dang. (RJN, Ex. 6, at p. 12.) In the TAC, Plaintiffs now allege Dang made false representations to Dao knowing that Dao would reasonably rely on those representations to enter into an agreement with Tong, including that Dang was properly licensed to perform the work in the contract. (TAC ¶ 10.) Plaintiffs allege “[a]s a direct and proximate result of unknowing Dang unlawful business practices and misrepresentations by Dang, Plaintiffs changed position and signed the agreement with Tong.” (TAC ¶ 118.) Plaintiff alleges numerous times throughout the TAC, however, that neither Dao nor Model Builders were even aware of the transaction between Dang and Tong. Plaintiff alleges, for example: - Tony Dang unlawfully used the name and license of Model Builders, Inc., to transact with Mr. Tong. Defendant Tony Dang did not obtain the consent and authorization from either Nghia Dao or Model Builders, Inc., to use the name and license of Model Builders, Inc., when he signed the agreement with Mr. Tong. (TAC ¶ 6.) - Defendant Loc Pham failed to professionally defend Plaintiffs at trial . . . by failing to present to the Court the unlawful and unfair business practices of Tony Dang when he used the license of Model Builders, Inc., to transact with Mr. Tong. (TAC ¶ 44.) - Dang was an unlicensed contractor when he originally entered into an agreement with Mr. Tong . . . (TAC ¶ 45 [emphasis in original].) - This agreement between Dang and Tong, was never disclosed nor was it approved by Plaintiffs. The private agreement between Dang and Tong was concealed, and never disclosed to Plaintiffs. (TAC ¶ 119.) “While inconsistent theories of recovery are permitted . . . a pleader cannot blow hot and cold as to the facts positively stated.” (<i>Manti v. Gunari</i> (1970) 5 Cal.App.3d 442, 449 [citations omitted, emphasis in original].) As such, Plaintiffs cannot allege both that Dang entered into the contract with Tong without their knowledge and that they relied on Dang’s representations to enter into the agreement with Tong. Finally, Dang contends the fraud claim is barred by the three-year statute of limitations. (Code Civ. Proc. § 338, subd. (d).)
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	Plaintiffs allege Dang fraud was discovered on 3/1/24, when a legal malpractice again was filed against Pham. (TAC ¶ 128.) In the Tong action, Tong filed a first amended complaint on 4/3/19 attaching the purported agreement between Dang and Tong dated 8/16/17. (RJN, Ex. 1.) Dao dba Model Builders filed an answer on 7/29/19. (RJN, Ex. 2.) This action was filed on 2/26/24, which is more than three years after Dao should have discovered the alleged fraud committed by Dang in 2019. The Court sustains the demurrer to the sixth cause of action. Seventh cause of action for indemnification Plaintiffs allege "Tony Dang, committ[ed] fraud by taking advantage of the name of Model Builders, Inc., and used those information to his benefits." (TAC ¶ 142.) Plaintiffs further allege "Plaintiffs without knowing the fraudulent intent of Tony Dang, and the illegal actions by Pham, received a judgment." (TAC ¶ 143.) As such, the seventh cause of action for indemnification against Dang is based on the cause of action for fraud. As the fraud cause of action is barred by the statute of limitations, the claim for indemnification also fails. The Court sustains the demurrer to the seventh cause of action. Eighth cause of action for unfair business competition The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (Cel-Tech Comm., Inc. v. Los Angeles Cellular Tel. Co. (1999) 20 Cal.4th 163, 180.) Plaintiffs allege Dang violated section 17200 when he misrepresented his capacity as a licensed general contractor and entered into an agreement to perform acts requiring a license. (TAC ¶ 155.) As discussed above, however, the court in the Tong action found the agreement was entered into between Dao dba Model Builders and Tong, not Dang and Tong. Moreover, the statute of limitations for violation of section 17200 is four years. (Bus. & Prof. Code § 17208.) This action was filed on 2/26/24 more than four years after Plaintiffs should have been aware of the alleged fraud in 2019.
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		The Court sustains the demurrer to the eighth cause of action. Ninth cause of action for declaratory relief To qualify for declaratory relief, an action must present two essential elements: 1) a proper subject of declaratory relief, and 2) an actual controversy involving justiciable questions relating to the rights of obligations of a party. (<i>Lee v. Silveira</i> (2016) 6 Cal.App.5th 527, 546; Code Civ. Proc. § 1060.) The “proper subjects” of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes, and include contracts and written instruments and statutory interpretation. (See <i>Brownfield v. Daniel Freeman Marina Hospital</i> (1989) 208 Cal.App.3d 405, 410; <i>Doan v. State Farm General Ins. Co.</i> (2011) 195 Cal.App.4th 1082, 1095.) Plaintiffs “request that the Court declare the rights of the parties in this matter.” (TAC ¶ 150.) Plaintiffs contend “Dang[’s] acts and conduct are proper subject for declaratory relief because he entered into an agreement with Tong without Model Builders, Inc. authority.” (Opp. at 12:9-11.) As discussed above, the court did not find Dang to be a party to the agreement at issue, and Plaintiffs have not identified any other contract or written instrument under which they seek a declaration of their rights with respect to Dang. Moreover, Plaintiffs have not stated a claim against Dang for the reasons discussed above. The Court sustains the demurrer to the ninth cause of action.
3	Farmanfarmian v. Ardaian 2025-01487796 Demurrer to Amended Complaint CMC	The Demurrer of Defendants Cyrus Ardalan and Juni Farmanfarmaian to the First Amended Complaint (FAC) of Plaintiff Nezam Farmanfarmaian is OVERRULED as moot. Defendants demur on the grounds that another action is pending in which Plaintiff has asserted substantially identical claims in a cross-complaint. (Case No. 2023-01338835.) Code of Civil Procedure section 430.10(c) state a demurrer may be brought on the grounds that, “There is another action pending between the same parties on the same cause of action.” Plaintiff concedes the FAC is identical as to Defendant Cyrus Ardalan, but contends that in the 2023 action,

		Defendant Juni Farmanfarmaian Ardalan has been voluntarily dismissed, so this separate complaint is appropriate against one Defendant. However, Plaintiff asserts that consolidation of the two matters will resolve the issue. In reply, moving Defendants state, "Since Plaintiff has stipulated to consolidation of the two cases, that is exactly what the court should now order in lieu of sustaining the demurrer. Consolidation will effectively serve the same purpose as abatement." Code of Civil Procedure section 1048(a) states, "(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." Here, the Court intends to consolidate this case and Case No. 2023-01338835, as agreed upon by the parties, rendering the demurrer moot. The parties shall appear at the hearing to discuss whether consolidations should be for all purposes including trial.
4	First American Title Insurance v. Gomez 2025-01460028 Demurrer to Cross Complaint	The Demurrer of Cross-Defendants Fidelity National Title Insurance Company, Fidelity National Title Company, Chicago Title Insurance Company, and Chicago Title Company to the Cross-Complaint of Mariquita S. Gomez is SUSTAINED with leave to amend. The Cross-Complaint alleges claims related to the movants' alleged failure to indemnify and defend Defendant/Cross-Complainant in relation to the claims alleged against her in the Complaint. Cross-Defendants contend (1) the claims against them are ambiguous because Cross-Complainant alleges liability of four different entities without adequately explaining the different bases for liability, and (2) the negligence claim is not viable against a title insurer. As to Fidelity National Title Company, movants argue there are no facts alleged to support liability, only the allegation that it acquired other Cross-Defendants in 2000. As to Fidelity National Title Insurance Company and Chicago Title Company, movants contend they were not parties to the title insurance policy, rather they were

		merely the escrow company and parent company of the title insurer, respectively. Movants contend that a title insurer does not owe a duty to support the negligence claim alleged in the Cross-Complaint as a matter of law. Movants generally argue the Cross-Complaint fails to explain or distinguish their liability for the causes of action for declaratory relief, breach of contract, breach of the implied covenant of good faith and fair dealing, equitable indemnity, and contribution. Finally, movants contend Cross-Complainant fails to attach the subject title policy or adequately allege its specific terms which have been breached. Cross-Complainant has not filed a timely opposition. Therefore, the demurrer is sustained on the grounds set out in the motion. Cross-Complainant shall file an amended Cross-Complaint within 15 days of service of notice of this order.
5	Morales v. Trinh 2026-01539320 Motion to be Relieved as Counsel CMC	The motion of attorneys Harry Mouradian and Shaun Bauman from Bauman Law APLC to be relieved as counsel of record for plaintiff Amando Peralta Morales is CONTINUED to November 2, 2026, at 1:45 p.m. California Rules of Court, Rule 3.1362, subdivision (d) requires that: "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." Although the declaration in support of the motion states client was served with the moving papers by mail, the proof of service does not show moving papers were served on client. Moving attorneys are to serve all moving papers in compliance with Rule 3.1362, subdivision (d) and file proof of service no later than 5 court days prior to the continued hearing. Moving attorneys to give notice.
6	Guetzkow v. Ford Motor Company 2025-01476742	The motion of attorney Larry Chae from Strategic Legal Practices, APC to be relieved as counsel of record for plaintiff Tyler Guetzkow is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.

	Motion to be Relieved as Counsel CMC	Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
7	Clark v. Clark 2025-01502837 Motion to set aside/vacate	Plaintiff Edward L. Clark, Jr.'s Motion to Vacate Order Issued 5/13/2026 is DENIED. Plaintiff moves pursuant to Code of Civil Procedure, section 473, subdivision (b) to set aside the Court's ruling, issued on 5/13/26, denying Plaintiff's Motion to Stay Proceedings in Related Family Law Matter 05D000275 and Order to Show Cause Regarding Preliminary Injunction. (See ROA 132.) As an initial matter, Defendant's defective notice argument lacks merit and the error was harmless. While the notice of motion lists the wrong address for the courthouse, it states the correct department, C15. Defendant's counsel appeared in person in department C15 on 5/13/26, the day before the instant motion was served. No notice was served indicating this case was transferred to a different department. Further, Defendant waived the notice irregularity by substantively opposing the motion. Discretionary relief under section 473, subdivision (b) is available to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.) "Within the context of section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929). Inadvertence is defined as "lack of heedfulness or attentiveness, inattention, fault from negligence." (<i>Baraili v. Baraui</i> (1952) 109 Cal.App.2d 917.) Inadvertence constitutes grounds for relief "where the circumstances surrounding the inadvertence justify it and the inadvertence is not wholly inexcusable and does not constitute gross negligence." (<i>Ross v San Diego Pipe</i> (1920) 50 Cal.App. 170.) "Surprise" is some condition or situation in which a party to a cause is unexpectedly placed, to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded

against. (*Credit-Managers Assn. v. National Independent Business Alliance* (1984) 162 Cal.App.3d 1166.)

Plaintiff argues the Court created a substantial defect or irregularity in the proceedings due to the inability to produce a transcript because the Court muted the court reporter, who appeared via Zoom, and then disconnected her. According to Plaintiff, this violated his due process rights and his right to an accurate record for an appeal and constitutes mistake, inadvertence, or surprise.

Defendant's counsel points out that before the Court adopted the tentative ruling, Plaintiff argued against it and, after Defendant's counsel argued for the tentative, Plaintiff argued again. Defendant's counsel notes that Judge Oberholzer, presiding, commented that the matter was "not close," which Defendant included in the Notice of Ruling served on Plaintiff. Defendant's counsel notes there was no testimony at the 5/13 hearing; only argument.

The Court finds Plaintiff has not established the Court denied Plaintiff's motion due to his mistake, inadvertence, surprise, or excusable neglect. The Court would have denied the motion regardless of whether the court reporter transcribed the hearing. Plaintiff cites no authority for the proposition that the inability to produce a transcript establishes mistake, inadvertence or surprise under section 473(b).

The Court also finds Plaintiff has not established that the inability to produce a transcript deprived him of a fair hearing or the ability to appeal or violated due process. Plaintiff was provided with the tentative ruling and had two opportunities to argue against it. If the order was appealable, Plaintiff was free to file an appeal with the Court of Appeal. California Rules of Court, rule 8.830 lists various ways to provide the Court of Appeal with the necessary record on appeal.

Relying on "[r]ule 60(b)," Plaintiff contends the court's action constitutes a procedural error that deprives a party of a fair hearing or the ability to appeal. Relying on "[r]ule 60(b)(4)," Plaintiff contends that if the action violates due process or the statutory right to a record, the resulting order may be void. Presumably Plaintiff is referring to California Rules of Court. Former California Rules of Court, rule 60 is now California Rules of Court, rule 8.380. The new rule relates to habeas corpus petitions and does not support the premise for which Plaintiff cites it.

The motion is denied.

8	Morris Cerullo World Evangelism v. G10 Law 2026-01543510 Motion for Change in Venue (Transfer) CMC	The Motion to Transfer Venue by Defendants G10 Law, A Professional Law Corporation, Louis A. Galuppo, and Georgia Z. Schneider is GRANTED. This legal malpractice case arises from the attorney Defendants' handling of an underlying real property lawsuit, Orange County Case No. 21-01227550. Defendants assert venue in San Diego County is proper because all parties reside in San Diego County and the attorney-client relationship was formed and carried out in that County. Legal standard Code of Civil Procedure section 395, subdivision (a) states in part, "Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. [. . .] Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." "The plaintiff's theory of the action as set forth in the complaint determines the venue. Because the law favors the right of trial at the defendant's residence, the complaint will be strictly construed against a plaintiff seeking to lay the venue elsewhere." (<i>Gallin v. Superior Court</i> (1991) 230 Cal.App.3d 541, 544.) However, "the county of a defendant's residence is not a preferred place of trial over the county where the contract is entered into or is to be performed." (<i>Gilman v. Nordin</i> (1952) 112 Cal.App.2d 788, 793 [emphasis in original].) "Section 395 of the Code of Civil Procedure provides that the county in which the contract sued on is made and is

		to be performed is a proper county for trial of the action. Further, it will be noted that the county where the contract is made is deemed to be the county where it is to be performed, unless there is a special contract in writing to the contrary. No distinction is drawn between an action at law or in equity. Further, where the main relief sought is grounded upon a cause of action based on a contract obligation, the contract or nature of the case controls under the 'main relief' rule." (<i>Diepenbrock v. Auslen</i> (1960) 185 Cal.App.2d 747, 751.) Section 397 states in part: "The court may, on motion, change the place of trial in the following cases: (a) When the court designated in the complaint is not the proper court. (b) When there is reason to believe that an impartial trial cannot be had therein. (c) When the convenience of witnesses and the ends of justice would be promoted by the change." Application Although Defendants have performed legal services related to Orange County litigation, Plaintiffs have not opposed the motion and have therefore not demonstrated Defendants "contracted to perform an obligation" in Orange County. Moreover, the statute states generally, the county "where the obligation is incurred is the county where it is to be performed," and the parties' contract was entered or "incurred" in San Diego.
11	Munoz v. Pacific Woods, LLC 2022-01248823 Motion to Dismiss/Strike CMC	Defendant Peter Arzola dba Absolute Services' motion to dismiss the Third Amended Complaint is OFF CALENDAR. Dismissal was entered as to Defendant on 8-4-26. (ROA 1138.) Moving Defendant to give notice. MOTION NO. 2:Defendant Peter Arzola dba Absolute Services' moves to strike portions of the Third Amended Complaint is OFF CALENDAR. Dismissal was entered as to Defendant on 8-4-26. (ROA 1138.) Moving Defendant to give notice.

12	Davis v. Pfaffly 2022-01294841 Demurrer to Answer Motion to Compel Answers to Form Interrogatories Motion to Compel Further Responses to Form Interrogatories Motion to compel further responses to special interrogatories Motion to compel production Motion to Compel Production Motion to compel response to requests for admissions Motion to compel response to request for admissions CMC	Motion 1: Demurrer to Answer Plaintiff Jaimie Davis' demurrer to Defendants' verified answer to the second amended complaint is OVERRULED. When a defendant bears the burden of proving a defense at trial, it is a "new matter" or "affirmative defense" that must be specially pleaded in the answer. (See <i>California Academy of Sciences v. County of Fresno</i> (1987) 192 Cal.App.3d 1436, 1442 [failure to plead equitable defenses waived those defenses].) A defendant raising such new matters must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384; 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515.) "Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]" "There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 733.) Here, Plaintiff's verified second amended complaint alleges causes of action for negligence, trespass, nuisance, willful and malicious conduct, and strict liability for fire suppression. The answer filed by Defendants adequately alleges affirmative defenses and responds to Plaintiff's allegations in compliance with the Code of Civil Procedure. Therefore, the demurrer is overruled. Motions 2-9: Motions to Compel Further Responses Plaintiff Jaimie Davis' Amended Motions to Compel Further Responses are DENIED. Defendants' request for monetary sanctions is GRANTED. Plaintiff moves to compel Defendants to Larry Gene Pfaffly and Carol A Pfaffly to serve further responses without objection to Plaintiff's Form Interrogatories, Set Two; Special Interrogatories, Set Two; Requests for Production, Set Two; and Requests for Admissions, Set Two ("Discovery"). Plaintiff also moves for an award of
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	monetary sanctions against Defendants and their counsel in the amount of \$1,610 for each motion, totaling \$12,880 for all eight motions. In their oppositions, Defendants request monetary sanctions against Plaintiff in the amount of \$225 per opposition, totaling \$1,800 for the eight oppositions. Plaintiff's motions are untimely. A motion to compel further responses must be filed within 45 days after service of the verified responses, or "any specific later date to which the propounding and responding parties have agreed in writing" (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c); 2033.290, subd. (c).) The 45-day deadline is extended if responses were served by mail, overnight delivery, fax, or electronically. (Code Civ. Proc., §§ 1013, 1010.6, subd. (a)(3)(B), 2016.050.) The propounding party waives the right to compel further responses if the motion is not timely filed. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c); 2033.290, subd. (c); see <i>Vidal Sassoon, Inc. v. Sup.Ct.</i>(Halpern) (1983) 147 Cal.App.3d 681, 683 [holding the deadlines for motions to compel further responses are "mandatory and the court may not entertain a belated motion to compel."].) Monetary sanctions must be imposed against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further responses unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).) On 12/31/25, Defendants served responses to the Discovery by mail that consisted of objections only. On 1/19/26, Defendants agreed to serve further responses without objections by 2/12/26. Despite this agreement, on 2/11/26, Plaintiff filed eight motions to compel further responses. On 2/12/26, as promised, Defendants served further verified responses without objections by mail thereby rendering the original motions moot. On 3/20/26, Defendants served second further verified responses without objections by mail. Accordingly, the deadline to file motions directed at the 2/12 and 3/20 further responses was 4/3/26 and 5/10/26, respectively. Plaintiff did not file the Amended Motions until 5/22/26. Plaintiff's attempt to relate the Amended Motions back to the original motions is unavailing. The original motions
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		challenged Defendant's original 12/31 responses and were filed before the 2/12 and 3/20 responses existed. Plaintiff cannot avoid the statutory deadline by amending the original motions. The motions are denied. Based on the foregoing, Plaintiff did not act with substantial justification in making these motions. Plaintiff created this situation by filing the original motions the day before the date Defendants agreed to serve further responses. There was no need to do so. Plaintiff's deadline to file a motion directed at the 12/31 responses did not expire until 2/19/26. Had Plaintiff waited just one day, there would have been no need to file the original motions. Plaintiff then refused to withdraw the original motions after Defendants served further responses without objections twice. He then failed to serve timely motions directed at the further responses. Even after the court gave Plaintiff another opportunity to resolve the motions informally, Plaintiff still did not withdraw the untimely motions. Defendants' request for sanctions therefore is granted. Plaintiff is ordered to pay monetary sanctions to Defendants in the amount of \$1,800 within 30 days.
13	McCoy v. McCoy 2024-01436961 Motion to for summary judgment/adjudication	Cross-Defendant Danny J. McCoy's motion for summary judgment in his favor and against Cross-Complainant Theresa E. McCoy as to the cross-complaint filed by Theresa E. McCoy is CONTINUED to November 9, 2026. There are several procedural issues with Cross-Complainant's Opposition. First, Cross-Complainant's opposition to the Motion is untimely. (Code Civ. Proc. §437c, subd. (b)(2) ["An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise."].) Second, Cross-Complainant has failed to submit a Separate Statement in Opposition to the Motion. (Code Civ. Proc. §437c, subd. (b)(3) ["The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed."]; <i>Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.</i> (2005) 133 Cal.App.4th 1197, 1211 ["[W]e do not question the right of a trial court to refuse to proceed with a summary judgment motion in the absence of an adequate separate statement from the opposing party...But the proper

		response in most instances, if the trial court is not prepared to address the merits of the motion in light of the deficient separate statement, is to give the opposing party an opportunity to file a proper separate statement rather than entering judgment against that party based on its procedural error.”].) Based on the Cross-Complainant’s failure to file a timely opposition or file a Separate Statement in Opposition, the Court will continue the hearing to allow Cross-Complainant to file a Separate Statement and give Cross-Defendant an opportunity to file reply papers. Cross-Complainant to file a separate statement no later than 20 days before the continued hearing. Cross-Defendant to file a reply no later than 11 days before the continued hearing. Moving party to give notice.
14	Quick Bridge Funding, LLC v. Axe Tactical LLC 2025-01480360 Motion to Summary Judgment/Adjudication	Plaintiff Quick Bridge Funding, LLC’s Motion for Summary Judgment is GRANTED. Code of Civil Procedure section 437c(c) states, “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” Plaintiff moves for summary adjudication on its 2nd and 3rd causes of action for Breach of Guaranty against Williams and Axe 2.0. There is no triable issue of fact as to the 2nd and 3rd causes of action. The elements of a claim for breach of contract are “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (<i>D'Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800.) As to the 2nd cause of action, Plaintiff has demonstrated (1) the existence of the guaranty with Williams, (2)

		Plaintiff's performance, (3) Williams's breach of the Guaranty, and (4) resulting damages in the amount of \$206,411. (Otero Decl., ¶¶ 4, 6, 8, and 9.) As to the 3rd cause of action, Plaintiff has demonstrated (1) the existence of the Guaranty with Axe 2.0; (2) Plaintiff performance; (3) Axe 2.0's breach of the Guaranty; and (4) resulting damages in the amount of \$206,411. (Otero Decl., ¶¶ 5, 6, 8, and 9.) Defendants have not opposed the Motion. Thus, summary judgement is proper because there is no dispute of material facts.
15	Trabuco Highlands Community Association v. Loeffler 2022-01297235 Motion to Expunge Lis Pendens	The motion of defendant Molly Loop, LLC, for an order expunging the lis pendens against certain residential property that it owns in Ladera Ranch that was recorded on January 12, 2023 and for an award of attorneys' fees is DENIED. The request of responding plaintiff Trabuco Highlands Community for an award of attorneys' fees is also DENIED. Discussion. In this consolidated action, defendant Molly Loop, moves in case no. 2022-01298111 for an order expunging the lis pendens against certain residential property that it owns in Ladera Ranch that was recorded on January 12, 2023. It also moves for an award of attorneys' fees of \$5980.00 incurred in bringing the motion. Plaintiff Trabuco Highlands Community Association opposes the motion and asks that it be awarded attorneys' fees of \$7,362.50. In its motion, defendant contends that, notwithstanding the cause of action for fraudulent conveyance in the complaint, plaintiff has not set forth a "real property claim" that can support a lis pendens because plaintiff seeks damages. It also contends that plaintiff cannot establish that it has a substantial probability of prevailing on its action. The motion was filed on May 11, 2026, exactly a week after the Court issued its order denying a motion by co-defendant Jennifer Loeffler to expunge the same lis pendens and for attorneys' fees and costs. (See minute order of May 4, 2026, ROA 647.) In its minute order, the Court rejected both contentions, stating as follows in its analysis:

	In its operative complaint, the HOA alleges that after it obtained a judgment against Loeffler in the underlying case, Loeffler fraudulently transferred her ownership of the subject property to an LLC of which she is the sole member in order to avoid enforcement of judgment against her. In the opening brief, Loeffler concedes the HOA has asserted a "real property claim." However, Defendant argues the HOA cannot prove the elements of (1) fraudulent intent, or (2) actual harm. She explains, "believing that the Association would not, and lawfully could not, enforce its judgment against the Subject Property, as it was her dwelling, and believing that the Association would instead seek to enforce its judgment, whenever it got around to it, by levying the property on which the assessments had been imposed, Loeffler felt free to transfer the Subject Property to a limited liability company for tax purposes and for her estate planning." (Motion, p. 4:23-27.) Loeffler asserts that there is no evidence she transferred the property to her LLC with fraudulent intent, and that the HOA was not harmed because the subject property is a principal residence which would not have been subject to judgment lien for a consumer debt. (Code Civ. Proc. § 699.730.) The HOA responds that there is substantial evidence of fraudulent intent, including (1) transfer to an insider, i.e. Loeffler's transfer of the property to the LLC which she solely owns for shares in the LLC, (2) Loeffler's retained control of the property, (3) context of the preexisting judgment, i.e. multiple actions to transfer Loeffler's interest in this and another property within four days after issuance of abstract of judgment which resulted in Loeffler personally becoming essentially insolvent. The HOA contends the property is not exempt from sale to satisfy the judgment, rather Loeffler may seek to claim a homestead exemption for only a portion of the sale proceeds. (Code Civ. Proc. §§ 704.740.) Moreover, Code of Civil Procedure section 699.710 does not preclude the HOA from attempting to enforce judgment via the subject property because the underlying judgment was not a consumer debt. Based on the evidence and legal argument presented at this stage, the HOA has met its burden of demonstrating it is more likely than not it will prevail. The context of Loeffler's multiple transfers of interests in real property within days of issuance of the abstract of judgment,
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	combined with the other circumstances of the transfers, support a finding of fraudulent intent. The question to what extent the property or some portion thereof may be subject to judgment enforcement actions need not be adjudicated at this time. But for purposes of this motion, Loeffler has not shown that as a matter of law the property is totally exempt from judgment enforcement. The HOA was seeking to enforce its judgment, which was largely for attorney fees and costs, which is not a consumer debt (money owed by reason of a "consumer credit transaction"), and although Loeffler may be able to obtain a homestead exemption she has not shown the entire property was exempt from judgment. Therefore, the HOA has demonstrated it will more likely than not prevail in voiding the transfer of property from Loeffler individually to the LLC wholly owned by Loeffler. For the first time in reply, Loeffler also argues this case does not involve a "real property claim" because the HOA seeks only monetary damages on its cause of action for voidable transfer. The Court declines to consider this new argument raised for the first time in reply because Loeffler changed her position and the HOA had no opportunity to respond. In opposing the motion, challenges the propriety of the motion under Code Civ. Proc. § 1008, referencing the co-defendant's unsuccessful motion and the order quoted above. It rightly contends that under section 1008, a party cannot bring repetitive motions for the same relief without demonstrating new or different facts, circumstances, or law. In fact, subdivision (a) of section 1008 provides: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or
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	decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. In addition, subdivision (e) states: This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section. Subdivision (d) states that “[a] violation of this section may be punished as a contempt and with sanctions as allowed by Section 128.7.” It also states that “an order made contrary to this section may be revoked by the judge or commissioner who made it, or vacated by a judge of the court in which the action or proceeding is pending.” Thus, because the motion seeks the same relief as the motion previously brought by co-defendant Loeffler, it is, as plaintiff contends, a motion for reconsideration of the motion denied on May 4, 2026. Defendant therefore was required to submit a declaration stating, among other things, new or different facts, circumstances, or law. Apparently recognizing that the motion was one for reconsideration, defense counsel submitted a declaration in which he declared that he had recently filed a motion on behalf of co-defendant Loeffler to expunge the same lis pendens and that the Court had denied the motion on May 4, 2026. He declared that “[t]he Court did not reach the issue of whether or not [plaintiff] stated a real property under [Code Civ. Proc. § 405.31], as the Court found that I raised the issue for the first time in my reply.” He declared that the Court also “rejected my contention that the judgment was subject to [Code Civ. Proc. § 699.730] based on an argument that neither party had raised or briefed.” He declared that “[both issues are brought before the Court, and possible for subsequent writ review, through the instant motion filed by Defendant 57 Molly Loop, LLC as a party aggrieved by the prior order.”
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		As plaintiff contends in its opposition, this declaration does not show any “new or different facts, circumstances, or law.” It simply shows that defendant wishes to make new arguments that the co-defendant could have made in the moving papers that she filed. Defendant’s procedural challenge to the motion is meritorious and the Court need not consider the merits. Although the responding plaintiff has asked for an award of attorneys’ fees of \$7,362.50 under the lis pendens statute, it has not set forth a basis for those fees in the declaration of attorney Amy M. Hammond.
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